

DOUGLAS COUNTY LIBRARIES
Board of Trustees Special Business Meeting
September 16, 2026
Castle Pines Library, Castle Pines, CO

President Nolan called the special business meeting to order at 5:30 p.m.

This meeting was held and was noticed in compliance with both Colorado Open Meeting Law and the Douglas County Libraries (DCL) Bylaws.

The following were present:

TRUSTEES: Pam Hampton, John Kennedy, Terry Nolan, Zach McKinney, Amy Windju, and Ted Vail

John Kennedy arrived at 5:38 p.m. A quorum was present with five present at 5:30 p.m. All appointed trustees were present. The District I seat remains vacant.

STAFF: Bob Pasicznyuk and Patti Owen-DeLay

STAFF PRESENT NOT PARTICIPATING IN THE MEETING: Casie Cook, Jill Corrente, Amber DeBerry, Amy Fischer, Juniper Hite, Chris Morelli, Tina Schmidt, Sylvester Sterling

LEGAL COUNSEL: Linda Glesne

SECURITY: Sergeant Nunn, Lone Tree Police Department

PUBLIC: Christine J. Harris, Bridget McEowen, Donna Lance, Sue Lewis, Tina Schmidt, Ken Greenberg, SM (unreadable), Anthonette Klinkerman, Gary Wachter, Lynne Wachter, David Levine, Heather Holloway, Nancy Student, Gilad Shwartz, Felice Entratter, Kim Carroll, Jess Byassee, Eldad Malha, Daniel Kopelman, Omri Livny, David Klinkerman

PUBLIC COMMENT

Anthonette Klinkerman – Douglas County resident, former teacher. Opposes restricting books.

Gary Wachter – Not a Douglas County resident. Against the book *You Are the Color*. Believes that the book speaks untruths about Israel and Zion and is inappropriate for children.

Lynne Wachter – Not a Douglas County resident. Agrees with viewpoint expressed by Gary Wachter.

David Levine – Former Douglas County resident. This book [*You Are the Color*] spreads hate through misrepresentation of what is happening.

Heather Holloway – Douglas County resident. Uphold keeping the book [*You Are the Color*] on the shelf and being able to sit with stories different than our own, especially when we don't agree with them.

Nancy Student – Douglas County resident. Retain *You Are the Color* in the library and in the children's section. Parents should decide.

Gilad Schwartz – Douglas County resident. Believes the book [*You Are the Color*] is demonizing to the Jewish people and wants the Jewish people gone. Move book to an appropriate age section.

Felice Entratter – Douglas County resident. Diverse population because Douglas County is welcoming. There are two sides for every story – an adult discourse. This book is not appropriate for children. Move book to older section or digital access.

Kim Carroll – Douglas County resident. This isn't a cultural issue; we cannot solve the history. This is a process issue, and the library has followed their process. Honor parental rights.

Jess Byassee – Douglas County resident. Echo what Ms. Carroll spoke. Supports the library following its process and parental rights.

Eldad Malha – Douglas County resident. Vital for us to talk about things. We are allowing bad things to happen through discourse, and books, etc. Wants his community to feel welcome and safe.

Daniel Kopelman – Not a Douglas County resident. This book [*You Are the Color*] does not belong in the children's section. It is not appropriate for children.

Omri Livny – Douglas County resident. Racist book [*You Are the Color*]. Children cannot determine what is true or not true. Children should have stories to dream and imagine.

LIBRARY BUSINESS

No one declared a conflict of interest on any of the action matters below.

CONSENT AGENDA

- Minutes of August 26, 2026, Business Meeting

MOTION 26-09-01SP: Hampton moved and the motion carried unanimously to approve the August 26, 2026, minutes. McKinney seconded the motion.

EXECUTIVE SESSION

Executive Session – Legal Advice on the Citizen Review Request escalated to the Library Board concerning the book *You Are the Color* by Rifk Ebeid.

Motion 26-09-02SP: Nolan moved and the motion passed unanimously to move into executive session pursuant to Colorado Revised Statute, Section 24-6-402(4)(b) for the purposes of receiving legal advice on specific legal questions related to the Citizen Review Request for *You Are the Color*, Federal Law, State Law, Colorado Library Law, Section 24-90-122, and library policy. McKinney seconded the motion.

Attorney Linda Glesne was present with the board in Executive Session.
The board entered Executive Session at 6:10 p.m.

RETURN TO OPEN MEETING

The board returned to the open meeting at 7:28 p.m.

Nolan stated: For the record, if any person who participated in the executive session believes that any substantial discussion of any matters not included in the motion to go into the executive session occurred during the executive session, or that any improper action occurred during the executive session in violation of Colorado Open Meeting Law, then speak now. Hearing none, the meeting continued.

Citizen Review Request (CRR) for *You Are the Color*

The board met with legal counsel to receive District legal advice in a confidential Executive Session to understand the legal parameters in dealing with an escalated Citizen Review Request.

Motion 26-09-03SP: McKinney moved and the motion passed five (Nolan, McKinney, Vail, Hampton and Kennedy) to one (with Windju opposing), on advice of legal counsel, that the Board finds that the Executive Director's Citizen Review Request review of February 2026 was complete and accurate, and they uphold it. Kennedy seconded the motion.

How was this decision made:

Based on legal advice around the escalated Citizen Review Request for *You Are the Color*, considering the applicability of cited Federal, State and Colorado Library Law, the Board's policies and legal precedence, the Board was instructed to consider the question of whether library policy was followed. Discussion of the contents of the book was not the purpose of the Board's review process, in accordance with policy and as limited by law. (Laws cited in the CRR include State Bill 24-216, Colorado Library Law Section 24-90-122 and Section 22-1-104(1)(a) Colorado Revised Statute.)

As per Colorado Library Law, Section 24-90-122 (3)(d) and Board policy, "A public library shall not reconsider the same library resource more than once every two years"; therefore, the Library will not consider a Citizen Review Request on this matter before 02/25/2028, as the Executive Director's response to the first CRR was included in the Board packet for the Board's 02/25/2026 business meeting.

TRUSTEE COMMENTS AND QUESTIONS

Nolan praised the Liane Moriarty author event with over 900 attendees as another premium experience.

UPCOMING BOARD MEETINGS

- September 30, 2026, Lone Tree Library, Lone Tree, CO
 - Board Study Session, 4:00 p.m. (Dinner at 5:00 p.m.)
 - Board Business Meeting, 5:30 p.m.

ADJOURN Motion 26-09-04SP: Vail moved to adjourn, McKinney seconded, and the motion carried unanimously. The meeting was adjourned at 7:36 p.m.

Respectfully submitted,

Ted Vail, Board Secretary
Minutes prepared by Patti Owen-DeLay
Approved September 30, 2026, Motion:26-09-02